

PLAKAR – GENERAL TERMS

1. FOREWORD

Plakar is a software publisher, allowing its Clients and Users to benefit from its data backup solution.

The Client has approached Plakar to benefit from the Software.

2. DEFINITIONS

The following definitions are applicable to the entire Agreement:

- **“Additional Service”**: refers to the professional services which can be rendered by Plakar to the Client, upon agreement and as described in the Order Form.
- **“Administrator”**: refers to any natural person who is an employee of the Client and/or any third party expressly authorized by the Client to be a User and manage access to the Software.
- **“Agreement”**: refers to the contractual agreement between the Client and Plakar, consisting of the Order Form, the present terms, the Annex and any amendment thereto.
- **“Annexes”**: refers to Annex 1 “Licence to Use the Software” and Annex 2 “SLA”.
- **“Commitment Period”**: refers to the contractual period during which the Software is provided for the term set forth in the Order Form.
- **“Compatible System”**: refers to a physical or virtual computing environment capable of running a supported Linux operating system and meeting the technical prerequisites defined by Plakar. This includes, without limitation physical servers (bare-metal), some virtual machines under hypervisors, some Cloud instances in public or private environments and some workstations or edge devices used for local or distributed operations. All explanations concerning Plakar Compatible Systems can be found at the following address: <https://www.plakar.io/download>.
- **“Effective Date”**: refers to the date set forth in the Order Form as of which the Agreement becomes effective.
- **“Intellectual Property Rights”**: refers to any right, registered or not, including patents and patent applications, trademarks and trademark applications, designs, copyright including copyright applicable to Software, related rights including producers’ rights and performers’ rights, sui generis rights, including database producer’s rights, and any other related rights including rights applicable to domain names, company name, names and trading names, rights related to know-how and business information, trade secret or any equivalent protection that exists in the world.
- **“Order Form”**: refers to the order form concluded between the Client and Plakar.
- **“Personal Data Regulation” or “GDPR”**: refers to Regulation (EU) 2016/679 of the European Parliament and of the Council of 27 April 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, as well as French Law No. 78-17 of 6 January 1978 (*Loi relative à l’informatique, aux fichiers et aux libertés*) or any other applicable regulation on personal data in its latest version in force.

- **"Party"**: refers to, in the singular, individually, Plakar or Client, and in the plural, collectively, Plakar and Client.
- **"Plakar"**: refers to the French simplified joint-stock company, whose registered office is located at 149 Avenue du Maine, Paris (75014), France, registered at the Paris Trade and Companies Register under number 933 509 754.
- **"SLA"**: refers to Annex 3 "SLA" which describes Plakar's commitments to service and support levels for the Client.
- **"Software"**: refers to the software published by Plakar and made available to the Client and its Users.
- **"Stored Data"**: refers to any digital content (including the original content and the associated metadata) that has been successfully processed by the Plakar platform and included in a snapshot within a digital container.
- **"User"**: refers to any natural person who uses the Software as an employee or service provider of the Client, including Administrators.

Unless circumstances require otherwise, definitions in the singular include the plural and *vice versa*.

3. PURPOSE OF THE AGREEMENT

The purpose of the Agreement is to govern the contractual relationship between the Parties regarding the provision of the Software.

Plakar retains full discretion over the technical and human resources to fulfill its undertakings under the Agreement.

The Parties agree to collaborate in good faith and to use their best efforts to fulfill their respective obligations.

4. CONTRACTUAL DOCUMENTS AND HIERARCHY

The Agreement consists of the Order Form, the present terms and the Annexes. Should there be any contradiction between these documents, they will prevail on one another according to the following hierarchy: (1) the Order Form, (2) the Annexes, and (3) the present terms.

If the Parties wish to include other documents within the scope of the Agreement, they must agree in writing and specify their articulation with the existing documents.

5. UNDERTAKINGS OF PLAKAR

5.1 Provision of the Software

Plakar undertakes to provide the Software according to the specifications described in the Order Form and in accordance with the terms of the license set forth in Annex 1.

5.2 Client support

The support obligations of Plakar are set forth in Annex 2.

6. UNDERTAKINGS OF THE CLIENT

6.1 Payment of the agreed sums

In return for the use of the Software and for any other Additional Service specified in the Order Form, the Client agrees to pay the Price agreed in the Order Form.

6.2 Fair and lawful use

The Client expressly agrees to:

- Avoid harming, directly or indirectly, Plakar's reputation or image.
- Ensure it has all the necessary legal or contractual authorizations to conclude the Agreement.
- Comply with the terms of the license as provided in Annex 1.
- Make all efforts necessary in order to make sure the Users comply with the terms of the end user licence agreement as provided in Annex 1.
- Avoid trying to install or installing the Software on a non-Compatible System.
- Use the Software only in the context of its professional activity and not for illicit purposes or under conditions not provided for in the Agreement and, more generally, not to disrupt the proper functioning of the Software.
- Not to cause bugs or malfunctions of the Software, in particular by downloading content containing viruses or by downloading any programs that could lead to the destruction of data or the introduction of bugs of any kind.
- Provide Plakar with any information necessary for the functioning of the Software, in particular report any bug by writing to Plakar.
- Appoint a primary point of contact to coordinate with Plakar and deploy appropriate skilled staff to ensure the fulfillment of its obligations.
- Take into account Plakar's advice to optimize the use of the Software.
- Allow communication between the Software instances in its System and Plakar for reporting purposes regarding the Stored Data metrics in view of billing. When such communication is not possible for specific reasons, the Client expressly agrees to subscribe an additional paying option and to hold quarterly meetings with Plakar in order to identify the Stored Data metrics for billing purposes.
- Not install, copy, or deploy the Software on any additional equipment beyond the number of licenses granted without Plakar's prior written consent.
- Update its Compatible Systems for the purpose of data security and to continue to be supported by Plakar at least once a year to allow optimal functioning of the Software.
- Not to take advantage of the Agreement and the technologies made at its disposal to compete, directly or indirectly, with Plakar.

More generally, the Client undertakes to make fair and non-excessive use of the Software and to use the Software in accordance with its purpose and object.

1.1 Compliance with the Agreement

The Client expressly declares and confirms that it has the legal capacity and the necessary powers to conclude the Agreement in its own name.

The Client undertakes to comply with every provision of the Agreement and guarantees Plakar, (obligation of result) that its Administrators and Users will agree and comply with every provision of the Agreement and with

any other documents governing the use of the Software (as provided under the notion of *porte-fort* under French law). In particular, the Client guarantees that the Administrators and Users will comply with and properly execute the terms of the licenses provided for in the Annexes.

The Client acknowledges and agrees that it is solely liable for the use that is made of the Software by the Administrators and Users. In this respect, the Client undertakes to bear all the consequences that may arise from their use.

7. PAYMENTS AND INVOICES

7.1 Price

The Order Form specifies the Price for the Software, the Support Price as well as the terms and frequency of the invoices. The Order can also specify the fees associated to Additional Services.

7.2 Invoices

Plakar invoices the Price according to the frequency chosen by the Parties in the Order Form. The Client agrees to pay Plakar the total price appearing in the invoice, within the period specified in the Order Form or, if not, upon reception of the invoice.

In the event of non-payment of an invoice on its due date, the defaulting Party will bear interest at a rate equal to three (3) times the legal interest rate, as from the first working day of delay. These penalties will be increased by a flat-rate recovery indemnity of forty (40) euros per unpaid debt, unless there is a legitimate reason (e.g. dispute over the amount or principle of an invoice).

7.3 Evolution of the Price

Plakar reserves the right to change the Price during the Agreement period, notably due to substantial changes in the functionalities of the Software or the Additional Services provided.

When the variation of the Price is due to the subscription or withdrawal of services, modules and/or options other than free functionalities or to frustration (*imprévision*), the new Price applies without delay, prorated to the remaining Commitment Period and considering the price already paid by the Client, if applicable.

In other cases, and in the event of a change in the Price, the new Price shall be notified in writing to the Client at least forty-five (45) days before the end of the Commitment Period. In the event of refusal of the new notified Price, the Client remains free to refuse the tacit renewal of the Agreement for the next Commitment Period. The new Subscription Price will only apply upon the expiration of the Commitment Period.

8. GUARANTEES OF PLAKAR

Plakar guarantees that it holds all the rights and authorizations enabling it to enter into the Agreement, and in particular (i) that it holds all the Intellectual Property Rights over the Software and (ii) that it holds all the rights allowing the Client to use the Software.

In this respect, Plakar guarantees the Client against any action, claim, demand or opposition from any natural persons claiming an intellectual property right which the use of the Software may have violated. In such case, the Client must inform Plakar within fifteen (15) calendar days starting from the date the Client had knowledge of the claim and must communicate all the documents supporting it.

Plakar undertakes to bear the financial burden of all damages to which the Client could be condemned to by a final (no appeal possible) court decision based exclusively on the infringement of an intellectual property right by the Software, except the lawyer costs incurred by the Client for its defense.

However, the present guarantee will only be applicable if (i) the existence of the claim and the documents establishing the existence of the claim are notified in writing to Plakar within fifteen (15) days starting from the date when the Client had knowledge of the claim and (ii) the claim brought by the third party against the Client does not originate from an act of the Client, the Administrator or the Users, nor from a breach of the licence provided by Annex 1, nor from a breach of any other documents governing the use of the Software.

9. LIABILITY

9.1 Liability of Plakar

The Parties agree that, as Plakar is a technical and digital service provider, Plakar' liability is strictly limited to the provision of the Software.

In particular, the Parties expressly agree that:

- the Software is supplied "as is" and that Plakar does not offer any guarantee regarding its compatibility with the Client's computer systems, the use made of them by the Administrators or the Users, and more generally, that the access, use and functioning of the Software will not be interrupted, blocked or without error.
- Plakar cannot be held liable for any difficulty in the access and the use of the Software due to elements beyond its control, such as disruptions of the internet network, Client's behaviour or troubles in the functioning of the Client's computer systems.
- Plakar cannot be held liable for any difficulty concerning an integration of the Software that is client-made or community-made and that is not listed as supported and stable by Plakar, at the following address: <https://www.plakar.io/integrations/>
- Plakar has no liability in case of accidental or voluntary destruction of all or part of the Software by the Client, by any Administrator and/or any User, or by a third party having accessed the Software without authorization.
- Plakar has no liability for any data, information, documents or other content entered, processed, generated or stored through the Software.
- Plakar is under no obligation to advise the Client on the choices made in the use of the Software, the Client being solely responsible for determining its needs and its use of the Software. Plakar has no liability whatsoever as to the execution, by the Client of any service that might be recommended by Plakar.
- For Additional Services, Plakar is under no obligation of result towards the Client and undertakes to use its best efforts, under an obligation of means, to perform the work described in the Order Form.
- Plakar may only be obliged to the reparation of direct and foreseeable damages caused by a breach related to the access to the Software. Consequently, Plakar will not, in any circumstance, be held liable for any other damages and losses suffered by the Client, in particular indirect damages (indirect damages include, but are not limited to, earning or profit losses, commercial damages, consequences of complaints, actions, claims of third parties against the Client, even where Plakar has been informed of their occurrence, with the exception of the guarantees expressly granted by Plakar under the Agreement).
- In any event, if Plakar is held liable, for any reason and under any legal ground held or invoked, for all types of damages combined or cumulated, Plakar' liability will be expressly limited and will not, in any event, exceed the total amount paid by the Client to Plakar in the last twelve (12) months.

9.2 Liability of the Client

The Client is exclusively liable for direct or indirect damages caused by its use, or the use by the Administrators or the Users, of the Software, including damages to its information systems, data losses, security breaches, failure to comply with rules on personal data, failure to comply with rules applicable to the Client's relationship with any Administrator and/or any User.

The Client acknowledges and agrees that it is solely responsible for obtaining and maintaining any third-party software licences required for the client's digital environment to be considered as a Compatible System. Plakar shall have no liability whatsoever for any claims, damages, penalties, or legal actions resulting from the lack of Compatible System.

10. DURATION, SUSPENSION AND TERMINATION

10.1 Duration and renewal

The Agreement enters into force as of the Effective Date and for the Commitment Period specified in this Order Form.

The Agreement is automatically renewed, by successive Commitment Periods of the same duration as the First Commitment Period, unless notice of non-renewal is given by one Party, at the latest thirty (30) days before the tacit renewal, by registered letter with acknowledgment of receipt.

The Agreement will be renewed under the same conditions as the previous Commitment Period..

10.2 Suspension

Upon notification by email, Plakar may unilaterally suspend, partially or totally, but temporarily, the access to the Software in the following situations:

- the Client, an Administrator or a User does not comply with one or several obligations provided by the Agreement;
- the Client stops reporting on Stored Data;
- the Client has used the Software in a manner placing an excessive load on Plakar computer system;
- in case of a payment incident regarding the sums due by the Client to Plakar;
- in the event of a security breach or in case of fraud.

Access may be restored when the cause of suspension has ceased, given that the potential suspension of the Agreement will have no effect on the duration of the Agreement.

10.3 Termination of the Agreement

In the event of a serious breach by a Party of one of its contractual obligations, the other Party may terminate the Agreement, by sending a letter detailing the alleged breach provided that the letter is sent with acknowledgement of receipt. Termination will be effective upon reception of the letter by the receiving Party with a notice period of fifteen (15) days.

Without being exhaustive, the Parties agree that the following are considered to be serious breaches of the Agreement:

- For the Client: failure to pay the agreed sums, irregularities or frauds in the use of the Software, any breach of Plakar' Intellectual Property Rights by the Client including use of the Software beyond the number of licenses granted by Plakar.
- For Plakar: failure to provide access to the Software for a significant period, repetitive dysfunctions of the Software.

Each Party remains bound to perform all its obligations under the Agreement for the period between the notification and the effective termination of the Agreement.

The termination of the Agreement also entails the termination of the licences granted under the terms of Annex 1 as well as the access to the Software.

10.4 Consequences of termination

Upon termination, the licenses granted to the Client, User and Administrator to access and use the Software shall immediately cease, and the Client must promptly cease all use of the Software and delete or destroy all copies in its possession or control.

11. AMENDMENTS TO THE AGREEMENT

Plakar reserves the right to freely make the Software evolve, in particular for legal or technological reasons, at its sole discretion, and to create new functionalities or to improve existing functionalities. The Parties agree that any modification that does not affect the essential characteristics of the Agreement - included but not limited to updates for security reasons, visual modification in the presentation of the user interface or modification advantageous to the Client of the Software (understood notably as any new functionalities of the Software that do not affect the old ones) - is automatically enforceable against the Client without prior notice.

12. CONFIDENTIALITY

Each Party undertakes not to disclose to third parties any confidential information exchanged or obtained in the context of the Agreement and/or necessary to the performance of the Agreement, for the entire course of the Agreement and for a period of five (5) years starting from the end of the Agreement.

Each Party undertakes to regard and to treat as confidential all information communicated by the other Party in the course of the Agreement. In particular, non-public information associated to (i) the access and the use of the Software, and (ii) the functioning and the functionalities of Plakar's processes, techniques and know-how are part of confidential information, the confidentiality of which must be preserved by the Parties.

Information that is considered confidential must remain confidential between the Parties, unless disclosure is required (i) to assert their rights in justice, notably – but not exclusively – in the event of non-performance of the Agreement by one of the Parties, (ii) by a court decision or (iii) to reply to the request of a tax or custom administration, a social security contribution collection administration, an auditor or a certified public accountant.

In the event where one Party is required to disclose confidential information, such Party must imperatively notice the other Party beforehand, without undue delay, and by any means (unless the requests concern a tax or custom administration, an auditor or a certified public accountant or if the information is strictly communicated to an employee, agent or authorized beneficiary that is bound by the same level of confidentiality).

13. PERSONAL DATA

The Parties undertake to comply with the Personal Data Regulations and to be able to justify their compliance.

Both Parties agree that they remain data controllers of the data processed under their respective authority in the course of the Agreement.

14. INTELLECTUAL PROPERTY

The Client acknowledges and expressly accepts that Plakar is the sole owner of all Intellectual Property Rights on the Software, its documentation, and any related materials. As such, the Client undertakes not to infringe or challenge the said Intellectual Property Rights in any way whatsoever.

Except for the license granted in Annex 1, no ownership or any Intellectual Property Rights are transferred to the Client.

15. STATISTICAL ANALYSIS

Client agrees that Plakar, in order to create statistical analyses and conduct research for development purposes, may (i) compile statistical data and other information related to the performance, operation and use of the Software and Services, and (ii) use data from the Services in an aggregated form for the security and management of the overall Software and Services and the development of its operations.

SalesCrew may make such analyses public, provided that Plakar does not incorporate personal data nor confidential information in a form that could be used to identify the Client, Administrators, or Users, or any other natural person. The Client agrees to the publication of the analyses and acknowledges that SalesCrew will retain all intellectual property rights on these analyses.

16. ELECTRONIC SIGNATURE

This Agreement is signed by means of an electronic signature process implemented by electronic signature software recognized by the market, in accordance with articles 1366 et seq. of the French *Code civil*. Each Party acknowledges having received all the information necessary for the electronic signature of this Agreement and having signed this Agreement electronically with full knowledge of the technology used and of its terms and conditions, and therefore waives any claim and/or action calling into question the reliability of this electronic signature process and/or its intention to sign this Agreement by means of said process. This Agreement has been generated as a single electronic original, in accordance with article 1375 of the French *Code civil*, a copy of which has been delivered to each of the parties directly by means of electronic signature software recognized by the market.

17. MISCELLANEOUS

17.1 Severability

If any provision of this Agreement is held invalid or void by a modification of legislation, regulation or by a court decision, the remainder of this Agreement will not be affected thereby as well as the duty to comply with the Agreement.

17.2 Non-renunciation

The failure of either Party to demand strict performance of any of the terms of the Agreement, permanently or temporarily, may not be understood as a renunciation of the right to assert any of such terms.

17.3 Assignment of the Agreement

The Client may not assign or transfer the Agreement to third parties without the prior written consent of Plakar.

In the event of (i) a merger by formation of a new company, contribution, partial contribution of assets, merger by acquisition, asset spin-off, or any other operation entailing a universal transfer of Plakar's assets or (ii) any

operation entailing a direct or indirect change of control affecting Plakar, the contractual relations will persist without it being necessary to inform or obtain the consent of the Client.

17.4 Communication between the Parties

All letters or correspondence sent in the course of the Agreement must use the Parties' contact details provided in the Order Form. Failing this, the relevant step or procedure will not be considered to have been carried out and/or the contractually agreed deadline or period will not begin to run.

Any change in the contact details of a Party must be notified by written notice to the other Party.

18. CHOICE OF LAW AND COMPETENT COURTS

The Agreement is governed by and interpreted according to French laws.

Any conflict or dispute related to the validity, the interpretation, performance, and/or termination of the Agreement must be submitted to the exclusive jurisdiction of the Commercial Court of Paris (*Tribunal des activités économiques de Paris*).

Annex 1 - Licence to use the Software
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1. PURPOSE OF THE ANNEX

The present annex defines the terms and conditions according to which Plakar grants the Client, who accepts it, a licence to use the Software.

2. SCOPE OF THE LICENCE

Plakar grants a strictly personal, non-exclusive, non-assignable and non-transferable right to use the Software. The licence is granted as of the Effective Date, for the entire duration of the Agreement, worldwide.

3. PURPOSE OF THE LICENCE AND LICENCED RIGHTS

The licence is granted for the sole use of the Software by the Client and the Administrators, for the sole needs and interests of the Client and for the sole purpose of developing the Client's business, which includes making the Software available to Users.

All rights which are not expressly granted by the Agreement remain Plakar's property, are not part of the rights granted and therefore are for Plakar's exclusive use.

4. RESTRICTIONS

Without prior written authorisation from Plakar, the Client shall not – and shall not authorise an Administrator, a User:

- allow a third party who has not been expressly and previously authorized to access or use the Software.
- allow an Administrator, a User or a third party to access or use the Software without having first created a personal Account or to use an Account other than his/her own;
- translate, modify, adapt, copy, reproduce or transcode the Software, or any other element, function or graphic of the Software and/or merge all or part of the Software in other computer programs except if provided by the applicable laws and regulations;
- sublicense, lend, rent, distribute, commercialise, transfer, sell, resell or assign the Software in any manner;
- develop a product or a service competing with the Software or develop any functionality of the Software;
- proceed to reverse engineering, decompile, disassemble, identify the source code, combine the source code with other Software or circumvent one of the Software's mechanisms or seek to reconstruct or discover the source code of the Software, except if provided by the applicable laws and regulations;
- conceive a derivative work based on the Software.

Annex 3 – Service Level Agreement

1. DEFINITIONS

The following definitions apply to the entire SLA:

- **"External Events"**: refers to any (i) situation beyond Plakar's reasonable control (including, without limitation, any event of *force majeure*, Internet access or telecommunications network problem or arising from the innovative nature of the Software) and (ii) situation resulting from the Client (or its equipment, including technology) or a third party (or its equipment, including technology).
- **"Incident"**: refers to any major technical problem affecting the Software, excluding Maintenance Operations and External Events.
- **"Maintenance Operation"**: refers to any maintenance operation performed by Plakar.

Unless circumstances require otherwise, definitions in the singular include the plural and *vice versa*.

2. INCIDENT MANAGEMENT AND RESOLUTION

2.1 Target response times for Basic SLA Support

The Parties agree that the following terms and conditions shall apply to the management of Incidents for the Basic SLA Support:

Priority	Incident definition	Response time
Critical	Backup/restore operations are blocked or the production environment is severely impacted with no viable workaround.	48 hours
High	A major feature is degraded, but backup/restore operations still work and there is no immediate data loss.	72 hours
Standard	A non-blocking issue or degraded feature that does not impact core backup/restore operations.	5 days
Low	Request for information, usage questions, or minor cosmetic issues.	14 days

2.2 Target response times for Premium SLA Support

The Parties agree that the following terms and conditions shall apply to the management of Incidents for the Premium SLA Support:

Priority	Incident definition	Response time
Critical	Backup/restore operations are blocked or the production environment is severely impacted with no viable workaround.	4 hours

High	A major feature is degraded, but backup/restore operations still work and there is no immediate data loss.	24 hours
Standard	A non-blocking issue or degraded feature that does not impact core backup/restore operations.	2 days
Low	Request for information, usage questions, or minor cosmetic issues.	5 days

Response time means the period between the Client's valid Incident report in accordance with section 3.2 of this Annex, and Plakar's confirmation that the Incident has been registered and is being investigated.

2.3 Incident reporting process

Any Incident must be reported to Plakar by the Client by email at support@plakar.io or using the email address specified in the Framework Agreement or on the official support website: with sufficient accuracy and details to identify the Incident. Any request outside of these means of communication shall not be considered valid for SLA purposes.

For Basic SLA Support, requests for assistance are made from Monday to Friday, excluding French public holidays, from 9:30 am to 5:30 pm.

For Premium SLA Support, requests for assistance are made at any time, seven days a week.

In response to its notification, the Client will receive a time-stamped acknowledgement of receipt without delay. The time stamp is made in Paris time (CET or CEST). The acknowledgement of receipt is the moment when the Incident is brought to the knowledge of Plakar and is the starting point for the applicable response times described above.

While waiting for a definitive solution, Plakar can propose a workaround to the Client.

Vendors may be used by Plakar for the partial execution of the Software's features. As a result, vendors issues or failures may impact portions of the Software. When a support issue has been diagnosed coming from a vendor, Plakar is committed to providing its best efforts to work with the vendor to resolve the issue. However, because service and support levels may vary from vendor to vendor, the resolution time of these incidents is beyond Plakar's immediate control.